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ALTERED STATE
'Reform, not punishment' is the Bihar CM's new mantra

PROHIBITION

NITISH LOWERS THE BAR

By Amitabh Srivastava

It's not exactly a second drink, but you can call it the legal version of a more lenient publican. Almost five years of prohibition in Bihar saw its jails overflowing. This has prompted Chief Minister Nitish Kumar, known for his uncompromising stand against alcohol consumption, to opt for a more relaxed approach towards first-time offenders. In this second edition of the law, passed by the state assembly on March 30, those caught drinking for the first time will now have to pay a fine of just Rs 2,000 to Rs 5,000 instead of facing arrest.

The change brought by the Bihar Prohibition and Excise (Amendment) Bill, modifying the 2016 law, is in sync with the idea Nitish has come around to: 'reform, not punishment'. His change of mind is prompted by a kind of institutional hangover: the state saw 350,000 cases filed, over 400,000 people arrested and 16.3 million liquor bottles seized since April 2016. Bringing some relief to tipplers, the government has decided to constitute at least one special court in each district to look into all ongoing prohibition cases; any accused who has already spent a month in jail will be set free.

Besides being more humanist, this will ease the overcrowding of jails. As on February 28, Bihar's 59 jails had 66,084 inmates against a total capacity of 47,750. The Supreme Court, too, has observed that the Patna High Court was "clogged with bail applications"

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arising from prohibition cases.

While moving the amendment bill, Sunil Kumar, the minister for prohibition, excise and registration, noted that the response to prohibition has been more positive than is usually alleged. For one, the women see it as reducing a socially disruptive element in an already penurious state. Research by the Chanakya National Law University, Patna, suggests it has contributed to more harmonious gender relations and the return of domestic bliss. Kumar, a former IPS officer, also said several other states have sent teams to Bihar to study the social impact of prohibition.

Though the amended law is relatively lenient towards tipplers, it also aims to strike at the alleged involvement of police and excise officials in smuggling rackets. Since the beginning of prohibition, over 230 officials have been sacked for being in cahoots with bootleggers. Now, seized liquor can be destroyed at the site itself and the process recorded electronically, with only a small sample retained as evidence. The amendments, in a sense, are a refinement of the whole process: Nitish wants the police and excise department to focus on liquor traders and smugglers rather than tipplers.

Fines, rather than prison time, will also have a deterrent effect while giving tipplers a second chance and encouraging them to stop drinking, say sources close to Nitish. Overall, the CM believes the liquor ban has had its effect. Says a senior official in the secretariat, "When prohibition came in April 2016, some 29 per cent of Bihar's population used to consume alcohol. In 2019-20, the National Family Health Survey (NFHS) confirmed the figure was down to 15.5 per cent. This means almost 1.7 crore people stopped drinking since."

In fact, at the beginning of Nitish's first full term as CM, in November 2005, some 35 per cent of men and one per cent of women in Bihar used to consume alcohol, going by NFHS data. So from there, whether by threat or blandishment, Bihar's glass of poison is more than half empty. ■